**RESOLUTION NO. 256-63**

# A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ARCATA CALLING FOR THE PLACEMENT OF A GENERAL TAX MEASURE ON THE BALLOT FOR THE NOVEMBER 3, 2026, GENERAL MUNICIPAL ELECTION FOR QUALIFIED VOTERS TO APPROVE AN ORDINANCE TO EXTEND THE TERMS OF A GENERAL TRANSACTIONS AND USE TAX AT THE RATE OF THREE-FOURTHS OF ONE CENT (3/4¢); AND DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS OF THE MEASURE

**WHEREAS,** the City of Arcata (the "City") is a full-service city, equipped with its own water and wastewater services, parks, trails, community forest, and City-run police; and

**WHEREAS,** the health, safety, and welfare of all residents in the City is the City's top priority; and

**WHEREAS,** the City currently levies for general purposes a voter-approved Transaction and Use Tax (Sales Tax) of three-fourths of one cent (3/4¢) as set forth in current Article 5 – Transactions and Use Tax, of Chapter 5 - Taxation, of Title II – Administration of the Arcata Municipal Code; and

**WHEREAS**, pursuant to California Elections Code 9222, the City Council has the authority to place local measures on the ballot to be considered at a Municipal election; and

**WHEREAS**, the Qualified Voters in Arcata approved the three-fourths of one cent (3/4¢) Sales Tax, as set forth in current Article 5 – Transactions and Use Tax, of Chapter 5 - Taxation, of Title II – Administration of the Arcata Municipal Code on November 4, 2008, for a 20-year term; and

**WHEREAS,** the City Council desires to submit to the voters at the November 3, 2026, Municipal Election a measure extending the term of the current three-fourths of one cent (3/4¢) Sales Tax to remove the 20-year sunset ("Sales Tax Measure"), with the tax remaining operative until it is repealed by the voters, as more specifically set forth in the attached proposed Ordinance amending Article 5 – Transaction and Use Tax, of Chapter 5 - Taxation, of Title II – Administration of the Arcata Municipal Code; and

**WHEREAS,** the proposed Sales Tax Measure, if locally enacted, is projected to generate general fund revenue of approximately $2.8 million annually; and

**WHEREAS,** the proposed measure will include strict accountability requirements such as public disclosure of all spending; annual independent financial audits that ensure funds are used effectively and as promised and only to benefit the Arcata community; and an Independent Citizen's Oversight Committee; and

**WHEREAS**, Article XIIIC, Section 2 of the California Constitution authorizes a city to impose a general tax if approved by a majority vote of the qualified electors; and

**WHEREAS,** pursuant to California Revenue and Taxation Code Section 7285.9, the City has the authority to levy a Sales Tax for general purposes, and subject to voter approval; and

**WHEREAS,** pursuant to California Revenue and Taxation Code Section 7285.9 and California Government Code Section 53724, to qualify for the ballot, two-thirds of the City Council (4 members) are required to vote affirmatively for the Sales Tax Ordinance; and

**WHEREAS**, if a Council Member is absent from the meeting, four (4) City Council Members are still required to vote affirmatively for the item to qualify for the ballot; and

**WHEREAS,** if so approved by the Council, and then passed by the voters on Tuesday, November 3, 2026, with a majority of voters (50% plus 1) supporting the measure, it would go into effect, upon the expiration of the existing Sales Tax, on April 1, 2029; and

**WHEREAS**, a General Municipal Election will be held on Tuesday, November 3, 2026, and will be called by Resolution of the City Council; and

**WHEREAS**, the City Council desires that the County of Humboldt Elections Office conduct the municipal election, pursuant to Elections Code Section 10403, to be held on Tuesday, November 3, 2026.

**NOW, THEREFORE, BE IT RESOLVED THAT** the City Council of the City of Arcata does resolve, declare and determine and order as follows:

**SECTION 1.** The City Council, pursuant to Elections Code §9222, does order submitted to the voters the question (set forth on the next page) on the ballot for the General Municipal Election to be held on Tuesday, November 3, 2026, in addition to any other matters required by law. There shall be printed substantially the following ballot question:

| ARCATA SALES TAX MEASURE | |
|---|---|
| Shall the measure to continue existing general government funding to maintain essential services including public safety staffing; filling potholes; maintaining and repairing City streets, sidewalks, multi-use trails, and bicycle paths; and expanding multi-modal circulation, by renewing and extending the voter-approved 3/4 cent sales tax until ended by voters, with all funds staying in Arcata, providing approximately $2.8 million annually, and requiring audited spending reports and citizens' oversight, be adopted? | YES |
| | NO |

**BE IT FURTHER RESOLVED,** the City Council hereby approves the Ordinance in substantially the form attached hereto as Exhibit "A" and approves submission thereof to the voters at the General Municipal Election on November 3, 2026.

**SECTION 2.** That the method of tax collection and all aspects of the application and operation of any tax levied pursuant to the adoption of the Ordinance attached hereto in Exhibit "A" shall be as provided in such Ordinance and/or as authorized in the Ordinance to be conducted and determined by the City Council.

**SECTION 3.** That the vote requirement for the ballot measure to pass is a majority (50% + 1) of the votes cast at the November 3, 2026, General Municipal Election.

**SECTION 4.** That the City Clerk is hereby authorized and directed to make any changes to the text of the proposition or this Resolution, including its exhibits, as required to conform to any requirements of law.

**SECTION 5.** Pursuant to Elections Code section 9280, the City Council hereby directs the City Clerk to transmit a copy of the Measure to the City Attorney. The City Attorney shall prepare an impartial analysis of the Measure, not to exceed 500 words in length, showing the effect of the Measure on existing law and the operation of the Measure, and transmit such impartial analysis to the City Clerk not later than the deadline for submittal of primary argument for or against the Measure.

**SECTION 6.** The City Clerk shall, not later than the 88th day prior to the General Municipal Election to be held on Tuesday, November 3, 2026, file with the Board of Supervisors and the Office of Elections of the County of Humboldt, a certified copy of this Resolution.

**SECTION 7**. The City recognizes that additional costs may be incurred by the County by

reason of the additional measure to the ballot and agrees to reimburse the County for any additional costs.

**SECTION 8**. The adoption of the Measure is not a "project" subject to the requirements of the California Environmental Quality Act (CEQA) (Public Resources Code Section §§ 21000 *et seq*.). CEQA Guideline § 15378(b)(4) provides that the creation of government funding mechanisms or other government fiscal activities that do not involve any commitment to a specific project that may result in a potentially significant physical impact on the environment are not projects subject to the requirements of CEQA.

**SECTION 9.** The provisions of this Resolution are severable and if any provision of this Resolution is held invalid, that provision shall be severed from the Resolution and the remainder of this Resolution shall continue in full force and effect, and not be affected by such invalidity.

**SECTION 10**. This Resolution shall become effective upon its adoption.

**DATED:** June 17, 2026

**ATTEST:**

City Clerk, City of Arcata

**APPROVED:**

Mayor, City of Arcata

**CLERK'S CERTIFICATE**

I hereby certify that the foregoing is a true and correct copy of **Resolution No. 256-63**, passed and adopted at a regular meeting of the City Council of the City of Arcata, Humboldt County, California, held on the 17th day of June, 2026, by the following vote:

AYES: **WHITE, ATKINS-SALAZAR, MATTHEWS, SCHAEFER, STILLMAN**

NOES: **NONE**

ABSENT: **NONE**

ABSTENTIONS: **NONE**

City Clerk, City of Arcata

**Exhibit "A"**

**ORDINANCE NO. 1589**

**AN ORDINANCE OF THE PEOPLE OF THE CITY OF ARCATA, CALIFORNIA, REPLACING ARTICLE 5 – TRANSACTIONS AND USE TAX, OF CHAPTER 5 – TAXATION, OF TITLE II – ADMINISTRATION, OF THE ARCATA MUNICIPAL CODE ENACTING A THREE-FOURTHS OF ONE CENT (3/4¢) GENERAL TRANSACTIONS AND USE TAX, TO BE EFFECTIVE WHEN THE CITY OF ARCATA'S EXISTING THREE-FOURTHS OF ONE CENT (3/4¢) GENERAL TRANSACTIONS AND USE TAX EXPIRES ON MARCH 31, 2029, WHICH SHALL BE ADMINISTERED BY THE CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION**

**WHEREAS,** Article XIIIC, Section 2 of the California Constitution authorizes a city to impose or extend a general tax if approved by a majority vote of the qualified electors; and

**WHEREAS,** Part 1.6 (commencing with Section 7251) of Division 2 of the California Revenue and Taxation Code, and Section 7285.9 of the California Revenue and Taxation Code, authorizes a city to adopt a transactions and use (sales) tax ordinance, which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose; and

**WHEREAS**, the original ballot measure adopted by qualified City of Arcata voters on November 4, 2008, approved the City of Arcata Transactions and Use Tax Ordinance, Article 5 –Transactions and Use Tax, of Chapter 5 – Taxation, of Title II – Administration, of the Arcata Municipal Code; and

**WHEREAS**, the Transactions and Use Tax Ordinance expires on March 31, 2029; and

**WHEREAS**, the original ballot measure adopted by qualified City of Arcata voters on November 4, 2008, identified increased staffing of police for public safety, filling potholes, maintaining and repairing City streets, sidewalks, and bicycle paths, and improving traffic circulation as the priority for use of the tax funds; and

**WHEREAS,** local, voter-approved funding for essential services provides a guaranteed source of funding for the City of Arcata that cannot be taken by the state or federal governments, as all funds will be legally required to be spent in Arcata; and

**WHEREAS,** the measure for the election on November 3, 2026, includes strict accountability requirements such as public disclosure of all spending; annual independent financial audits that ensure funds are used effectively and as promised

and only to benefit the Arcata community; and annual review by the Transactions and Use Tax Oversight Committee (TUTOC); and

**WHEREAS,** pursuant to Revenue and Taxation Code section 7285.9 and Government Code section 53724, the City Council approved by two-thirds vote this general tax ordinance and submitted this general tax ordinance to the electorate of the City for a vote at the November 3, 2026, general election in accordance with Government Code section 53723 and Article XIII C, section 2 of the California Constitution.

**NOW, THEREFORE, THE PEOPLE OF THE CITY OF ARCATA DO ORDAIN AS FOLLOWS:**

**SECTION 1**. ADOPTION OF A REPLACEMENT ARTICLE. Subject to the approval of a majority of the voters of the City of Arcata at the scheduled election so designated by the City Council in a resolution placing this Ordinance on the ballot for such election, upon its expiration on March 31, 2029, Article 5 –Transactions and Use Tax, of Chapter 5 – Taxation, in Title II – Administration, of the Arcata Municipal Code shall be replaced with a new section to read as follows:

## ARTICLE 5—TRANSACTIONS AND USE TAX

### SEC. 2684 Title.

This Ordinance shall be known as the "Transactions and Use Tax." The City of Arcata hereinafter shall be called "City." This Ordinance will be applicable to the incorporated territory of the City. This Ordinance shall replace the City's existing Transactions and Use Tax, as described in Chapter 5, Article 5, §§ 2684-2684.15, upon its expiration on March 31, 2029.

### SEC. 2684.1 Definitions.

For the purpose of this Ordinance the following words and terms shall have the meaning given in this section:

***IN THE CITY.*** Includes all territory within the Arcata city limits.

***OPERATIVE DATE.*** The first day of the first calendar quarter commencing more than 110 days after the election on this Ordinance and upon the expiration of the existing tax, which expires on March 31, 2029.

***TERMINATION DATE.*** The date this Ordinance is repealed by voters.

### SEC. 2684.2 Purpose.

This Ordinance is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

(A) To impose a retail transactions and use tax in accordance with the

provisions of Part 1.6 (commencing with § 7251) of Division 2 of the California Revenue and Taxation Code and § 7285.9 of Part 1.7 of Division 2 which authorizes the City to adopt this tax Ordinance which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.

(B) To adopt a retail transactions and use tax Ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the California Revenue and Taxation Code.

(C) To adopt a retail transactions and use tax Ordinance that imposes a tax and provides a measure that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California state sales and use taxes.

(D) To adopt a retail transactions and use tax Ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the California Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this Ordinance.

**SEC. 2684.3 Contract with State.**

Prior to the operative date, the City shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax Ordinance; provided, that if the City shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date, it shall nevertheless so contract and in such a case the operative date shall be the first day of the first calendar quarter following the execution of such a contract.

**SEC. 2684.4 Transaction Tax Rate.**

For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated territory of the City at the rate of three-fourths of a cent (3/4¢) per dollar of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this Ordinance.

**SEC. 2684.5 Place of Sale.**

For the purposes of this Ordinance, all retail sales are consummated at the

place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his or her agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the state or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

**SEC. 2684.6 Use Tax Rate.**

An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the operative date of this Ordinance for storage, use or other consumption in said territory at the rate of three-fourths of a cent (3/4¢) per dollar of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

**SEC. 2684.7 Adoption of Provisions of State Law.**

Except as otherwise provided in this Ordinance and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the California Revenue and Taxation Code, all of the provisions of Part 1 (commencing with § 6001) of Division 2 of the California Revenue and Taxation Code are hereby adopted and made a part of this Ordinance as though fully set forth herein.

**SEC. 2684.8 Limitations on Adoption of State Law and Collection of Use Taxes.**

In adopting the provisions of Part 1 of Division 2 of the California Revenue and Taxation Code:

(A) Wherever the State of California is named or referred to as the taxing agency, the name of this city shall be substituted therefore. However, the substitution shall not be made when:

(1) The word "state" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California;

(2) The result of that substitution would require action to be taken by or against this city or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Ordinance;

(3) In those sections, including, but not necessarily limited to

sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

(a) Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption remain subject to tax by the state under the provisions of Part 1 of Division 2 of the California Revenue and Taxation Code; or

(b) Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code; or

(4) In §§ 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the California Revenue and Taxation Code.

(B) (1) The word "city" shall be substituted for the word "state" in the phrase "retailer engaged in business in this state" in § 6203 and in the definition of that phrase in § 6203.

(2) "A retailer engaged in business in the district" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the state by the retailer and all persons related to the retailer that exceed $500,000. For purposes of this section, a person is related to another person if both persons are related to each other pursuant to § 267(b) of the Internal Revenue Code and the regulations thereunder.

**SEC. 2684.9 Permit Not Required.**

If a seller's permit has been issued to a retailer under § 6067 of the California Revenue and Taxation Code, an additional transactor's permit shall not be required by this Ordinance.

**SEC. 2684.10 Exemptions and Exclusions.**

(A) There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

(B) There are exempted from the computation of the amount of transactions tax the gross receipts from:

(1) Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which the sale is made and directly and exclusively in the use of such

aircraft as common carriers of persons or property under the authority of the laws of this state, the United States, or any foreign government.

(2) Sales of property to be used outside the City which is shipped to a point outside the City, pursuant to the contract of sale, by delivery to such point by the retailer or his or her agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this subsection, delivery to a point outside the City shall be satisfied:

(a) With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with § 4000) of Division 3 of the Cal. Vehicle Code, aircraft licensed in compliance with § 21411 of the California Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with § 9840) of the California Vehicle Code by registration to an out-of-city address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

(b) With respect to commercial vehicles, by registration to a place of business out-of-city and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

(3) The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this Ordinance.

(4) A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this Ordinance.

(5) For the purposes of subsections (B)(3) and (4) of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

(C) There are exempted from the use tax imposed by this Ordinance, the storage, use or other consumption in this City of tangible personal property:

(1) The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

(2) Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this state, the United States, or any foreign government. This exemption is in addition to the exemptions provided in §§ 6366 and 6366.1 of the California Revenue and Taxation Code.

(3) If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this Ordinance.

(4) If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this Ordinance.

(5) For the purposes of subsections (C)(3) and (4) of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

(6) Except as provided in subsection (C)(7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent, canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

(7) "A retailer engaged in business in the City" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with § 4000) of Division 3 of the California Vehicle Code, aircraft licensed in compliance with § 21411 of the California Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with § 9840) of the California Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

(D) Any person subject to use tax under this Ordinance may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the California Revenue and Taxation Code with respect to the sale to the person of the property, the storage, use or other consumption of which is subject to the use tax.

**SEC. 2684.11 Amendments.**

All amendments subsequent to the effective date of this Ordinance to Part 1 of Division 2 of the California Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the California Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the California Revenue and Taxation Code, shall automatically become a part of this Ordinance, provided however, that no such amendment shall operate so as to affect the

rate of tax imposed by this Ordinance.

**SEC. 2684.12 Enjoining Collection Forbidden.**

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the state or the City, or against any officer of the state or the City, to prevent or enjoin the collection under this Ordinance, or Part 1.6 of Division 2 of the California Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

**SEC. 2684.13 Severability.**

If any provision of this Ordinance or the application thereof to any person or circumstance is held invalid, the remainder of the Ordinance and the application of such provision to other persons or circumstances shall not be affected thereby.

**SEC. 2684.14 Effective Date.**

This Ordinance relates to the levying and collecting of the City transactions and use taxes and shall take effect immediately.

**SEC. 2684.145 Termination Date.**

The authority to levy the tax imposed by this Ordinance shall expire when rescinded by voters.

**SEC.2684.146 Fiscal Accountability Provisions.**

Consistent with Arcata's value to be accountable and transparent, the existing Transactions and Use Tax Oversight Committee (TUTOC) is tasked with conducting an annual review of all the expenditures of revenues generated by the tax to ensure fiscal accountability and public participation.

**SECTION 2**. COUNCIL AUTHORITY TO AMEND. This is a City Council-sponsored initiative Ordinance which otherwise would only be subject to amendment by the voters of the City. However, pursuant to Elections Code Section 9217, the City Council shall have and retain the right and authority to amend the Ordinance to further its purposes and intent (including but not limited to amendment for more efficient administration as determined by the City Council) in any manner that does not increase a tax rate, or otherwise constitute a tax increase for which voter approval is required by Article XIII C of the California Constitution.

**SECTION 3.** SEVERABILITY. If any section, subsection, sentence, clause, phrase, or portion of this Ordinance is for any reason held to be invalid or unenforceable by a court of competent jurisdiction, the remaining portions of this Ordinance shall

nonetheless remain in full force and effect. The people of the City of Arcata hereby declare that they would have adopted each section, subsection, sentence, clause, phrase, or portion of this Ordinance, irrespective of the fact that any one or more sections, subsections, sentences, clauses, phrases, or portions of this Ordinance be declared invalid or unenforceable.

**SECTION 4.** CEQA. The adoption of this Ordinance is not a "project" subject to the requirements of the California Environmental Quality Act (CEQA) (Public Resources Code Section §§ 21000 *et seq.*). CEQA Guideline § 15378(b)(4) provides that the creation of government funding mechanisms or other government fiscal activities that do not involve any commitment to a specific project that may result in a potentially significant physical impact on the environment are not projects subject to the requirements of CEQA.

**SECTION 5.** APPROPRIATIONS LIMIT. Pursuant to Article XIIIB of the California Constitution, the appropriations limit for the City of Arcata is increased to the maximum extent over the maximum period of time allowed under the law consistent with the revenues generated by this tax.

**SECTION 6.** EFFECTIVE DATE. If a majority of the voters of the City of Arcata voting at the General Municipal Election of November 3, 2026, vote in favor of this Ordinance, then this Ordinance shall become a valid and binding Ordinance of the City of Arcata, and shall be considered as adopted upon the date that the vote is declared by the City Council, and this Ordinance shall go into effect ten (10) days after that date, pursuant to Election Code section 9217.

**CLERK'S CERTIFICATE**

I hereby certify that the foregoing is a true and correct copy of Ordinance No. 1589, passed and adopted at a special meeting of the City Council of the City of Arcata, County of Humboldt, State of California on the __ Day of December, 2026.

_____

City Clerk, City of Arcata

**Exhibit "A"**

**ORDINANCE NO. 1589**

**AN ORDINANCE OF THE PEOPLE OF THE CITY OF ARCATA, CALIFORNIA, REPLACING ARTICLE 5 – TRANSACTIONS AND USE TAX, OF CHAPTER 5 – TAXATION, OF TITLE II – ADMINISTRATION, OF THE ARCATA MUNICIPAL CODE ENACTING A THREE-FOURTHS OF ONE CENT (3/4¢) GENERAL TRANSACTIONS AND USE TAX, TO BE EFFECTIVE WHEN THE CITY OF ARCATA'S EXISTING THREE-FOURTHS OF ONE CENT (3/4¢) GENERAL TRANSACTIONS AND USE TAX EXPIRES ON MARCH 31, 2029, WHICH SHALL BE ADMINISTERED BY THE CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION**

**WHEREAS,** Article XIIIC, Section 2 of the California Constitution authorizes a city to impose or extend a general tax if approved by a majority vote of the qualified electors; and

**WHEREAS,** Part 1.6 (commencing with Section 7251) of Division 2 of the California Revenue and Taxation Code, and Section 7285.9 of the California Revenue and Taxation Code, authorizes a city to adopt a transactions and use (sales) tax ordinance, which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose; and

**WHEREAS**, the original ballot measure adopted by qualified City of Arcata voters on November 4, 2008, approved the City of Arcata Transactions and Use Tax Ordinance, Article 5 –Transactions and Use Tax, of Chapter 5 – Taxation, of Title II – Administration, of the Arcata Municipal Code; and

**WHEREAS**, the Transactions and Use Tax Ordinance expires on March 31, 2029; and

**WHEREAS**, the original ballot measure adopted by qualified City of Arcata voters on November 4, 2008, identified increased staffing of police for public safety, filling potholes, maintaining and repairing City streets, sidewalks, and bicycle paths, and improving traffic circulation as the priority for use of the tax funds; and

**WHEREAS,** local, voter-approved funding for essential services provides a guaranteed source of funding for the City of Arcata that cannot be taken by the state or federal governments, as all funds will be legally required to be spent in Arcata; and

**WHEREAS,** the measure for the election on November 3, 2026, includes strict accountability requirements such as public disclosure of all spending; annual independent financial audits that ensure funds are used effectively and as promised

and only to benefit the Arcata community; and annual review by the Transactions and Use Tax Oversight Committee (TUTOC); and

**WHEREAS,** pursuant to Revenue and Taxation Code section 7285.9 and Government Code section 53724, the City Council approved by two-thirds vote this general tax ordinance and submitted this general tax ordinance to the electorate of the City for a vote at the November 3, 2026, general election in accordance with Government Code section 53723 and Article XIII C, section 2 of the California Constitution.

**NOW, THEREFORE, THE PEOPLE OF THE CITY OF ARCATA DO ORDAIN AS FOLLOWS:**

**SECTION 1**. ADOPTION OF A REPLACEMENT ARTICLE. Subject to the approval of a majority of the voters of the City of Arcata at the scheduled election so designated by the City Council in a resolution placing this Ordinance on the ballot for such election, upon its expiration on March 31, 2029, Article 5 –Transactions and Use Tax, of Chapter 5 – Taxation, in Title II – Administration, of the Arcata Municipal Code shall be replaced with a new section to read as follows:

## ARTICLE 5—TRANSACTIONS AND USE TAX

### SEC. 2684 Title.

This Ordinance shall be known as the "Transactions and Use Tax." The City of Arcata hereinafter shall be called "City." This Ordinance will be applicable to the incorporated territory of the City. This Ordinance shall replace the City's existing Transactions and Use Tax, as described in Chapter 5, Article 5, §§ 2684-2684.15, upon its expiration on March 31, 2029.

### SEC. 2684.1 Definitions.

For the purpose of this Ordinance the following words and terms shall have the meaning given in this section:

***IN THE CITY.*** Includes all territory within the Arcata city limits.

***OPERATIVE DATE.*** The first day of the first calendar quarter commencing more than 110 days after the election on this Ordinance and upon the expiration of the existing tax, which expires on March 31, 2029.

***TERMINATION DATE.*** The date this Ordinance is repealed by voters.

### SEC. 2684.2 Purpose.

This Ordinance is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

(A) To impose a retail transactions and use tax in accordance with the

provisions of Part 1.6 (commencing with § 7251) of Division 2 of the California Revenue and Taxation Code and § 7285.9 of Part 1.7 of Division 2 which authorizes the City to adopt this tax Ordinance which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.

(B) To adopt a retail transactions and use tax Ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the California Revenue and Taxation Code.

(C) To adopt a retail transactions and use tax Ordinance that imposes a tax and provides a measure that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California state sales and use taxes.

(D) To adopt a retail transactions and use tax Ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the California Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this Ordinance.

**SEC. 2684.3 Contract with State.**

Prior to the operative date, the City shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax Ordinance; provided, that if the City shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date, it shall nevertheless so contract and in such a case the operative date shall be the first day of the first calendar quarter following the execution of such a contract.

**SEC. 2684.4 Transaction Tax Rate.**

For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated territory of the City at the rate of three-fourths of a cent (3/4¢) per dollar of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this Ordinance.

**SEC. 2684.5 Place of Sale.**

For the purposes of this Ordinance, all retail sales are consummated at the

place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his or her agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the state or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

**SEC. 2684.6 Use Tax Rate.**

An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the operative date of this Ordinance for storage, use or other consumption in said territory at the rate of three-fourths of a cent (3/4¢) per dollar of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

**SEC. 2684.7 Adoption of Provisions of State Law.**

Except as otherwise provided in this Ordinance and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the California Revenue and Taxation Code, all of the provisions of Part 1 (commencing with § 6001) of Division 2 of the California Revenue and Taxation Code are hereby adopted and made a part of this Ordinance as though fully set forth herein.

**SEC. 2684.8 Limitations on Adoption of State Law and Collection of Use Taxes.**

In adopting the provisions of Part 1 of Division 2 of the California Revenue and Taxation Code:

(A) Wherever the State of California is named or referred to as the taxing agency, the name of this city shall be substituted therefore. However, the substitution shall not be made when:

(1) The word "state" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California;

(2) The result of that substitution would require action to be taken by or against this city or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Ordinance;

(3) In those sections, including, but not necessarily limited to

sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

(a) Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption remain subject to tax by the state under the provisions of Part 1 of Division 2 of the California Revenue and Taxation Code; or

(b) Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code; or

(4) In §§ 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the California Revenue and Taxation Code.

(B) (1) The word "city" shall be substituted for the word "state" in the phrase "retailer engaged in business in this state" in § 6203 and in the definition of that phrase in § 6203.

(2) "A retailer engaged in business in the district" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the state by the retailer and all persons related to the retailer that exceed $500,000. For purposes of this section, a person is related to another person if both persons are related to each other pursuant to § 267(b) of the Internal Revenue Code and the regulations thereunder.

**SEC. 2684.9 Permit Not Required.**

If a seller's permit has been issued to a retailer under § 6067 of the California Revenue and Taxation Code, an additional transactor's permit shall not be required by this Ordinance.

**SEC. 2684.10 Exemptions and Exclusions.**

(A) There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

(B) There are exempted from the computation of the amount of transactions tax the gross receipts from:

(1) Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which the sale is made and directly and exclusively in the use of such

aircraft as common carriers of persons or property under the authority of the laws of this state, the United States, or any foreign government.

(2) Sales of property to be used outside the City which is shipped to a point outside the City, pursuant to the contract of sale, by delivery to such point by the retailer or his or her agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this subsection, delivery to a point outside the City shall be satisfied:

(a) With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with § 4000) of Division 3 of the Cal. Vehicle Code, aircraft licensed in compliance with § 21411 of the California Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with § 9840) of the California Vehicle Code by registration to an out-of-city address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

(b) With respect to commercial vehicles, by registration to a place of business out-of-city and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

(3) The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this Ordinance.

(4) A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this Ordinance.

(5) For the purposes of subsections (B)(3) and (4) of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

(C) There are exempted from the use tax imposed by this Ordinance, the storage, use or other consumption in this City of tangible personal property:

(1) The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

(2) Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this state, the United States, or any foreign government. This exemption is in addition to the exemptions provided in §§ 6366 and 6366.1 of the California Revenue and Taxation Code.

(3) If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this Ordinance.

(4) If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this Ordinance.

(5) For the purposes of subsections (C)(3) and (4) of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

(6) Except as provided in subsection (C)(7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent, canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

(7) "A retailer engaged in business in the City" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with § 4000) of Division 3 of the California Vehicle Code, aircraft licensed in compliance with § 21411 of the California Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with § 9840) of the California Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

(D) Any person subject to use tax under this Ordinance may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the California Revenue and Taxation Code with respect to the sale to the person of the property, the storage, use or other consumption of which is subject to the use tax.

**SEC. 2684.11 Amendments.**

All amendments subsequent to the effective date of this Ordinance to Part 1 of Division 2 of the California Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the California Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the California Revenue and Taxation Code, shall automatically become a part of this Ordinance, provided however, that no such amendment shall operate so as to affect the

rate of tax imposed by this Ordinance.

**SEC. 2684.12 Enjoining Collection Forbidden.**

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the state or the City, or against any officer of the state or the City, to prevent or enjoin the collection under this Ordinance, or Part 1.6 of Division 2 of the California Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

**SEC. 2684.13 Severability.**

If any provision of this Ordinance or the application thereof to any person or circumstance is held invalid, the remainder of the Ordinance and the application of such provision to other persons or circumstances shall not be affected thereby.

**SEC. 2684.14 Effective Date**.

This Ordinance relates to the levying and collecting of the City transactions and use taxes and shall take effect immediately.

**SEC. 2684.145 Termination Date.**

The authority to levy the tax imposed by this Ordinance shall expire when rescinded by voters.

**SEC.2684.146 Fiscal Accountability Provisions.**

Consistent with Arcata's value to be accountable and transparent, the existing Transactions and Use Tax Oversight Committee (TUTOC) is tasked with conducting an annual review of all the expenditures of revenues generated by the tax to ensure fiscal accountability and public participation.

**SECTION 2**. COUNCIL AUTHORITY TO AMEND. This is a City Council-sponsored initiative Ordinance which otherwise would only be subject to amendment by the voters of the City. However, pursuant to Elections Code Section 9217, the City Council shall have and retain the right and authority to amend the Ordinance to further its purposes and intent (including but not limited to amendment for more efficient administration as determined by the City Council) in any manner that does not increase a tax rate, or otherwise constitute a tax increase for which voter approval is required by Article XIII C of the California Constitution.

**SECTION 3.** SEVERABILITY. If any section, subsection, sentence, clause, phrase, or portion of this Ordinance is for any reason held to be invalid or unenforceable by a court of competent jurisdiction, the remaining portions of this Ordinance shall

nonetheless remain in full force and effect. The people of the City of Arcata hereby declare that they would have adopted each section, subsection, sentence, clause, phrase, or portion of this Ordinance, irrespective of the fact that any one or more sections, subsections, sentences, clauses, phrases, or portions of this Ordinance be declared invalid or unenforceable.

**SECTION 4.** CEQA. The adoption of this Ordinance is not a "project" subject to the requirements of the California Environmental Quality Act (CEQA) (Public Resources Code Section §§ 21000 *et seq*.). CEQA Guideline § 15378(b)(4) provides that the creation of government funding mechanisms or other government fiscal activities that do not involve any commitment to a specific project that may result in a potentially significant physical impact on the environment are not projects subject to the requirements of CEQA.

**SECTION 5.** APPROPRIATIONS LIMIT. Pursuant to Article XIIIB of the California Constitution, the appropriations limit for the City of Arcata is increased to the maximum extent over the maximum period of time allowed under the law consistent with the revenues generated by this tax.

**SECTION 6.** EFFECTIVE DATE**.** If a majority of the voters of the City of Arcata voting at the General Municipal Election of November 3, 2026, vote in favor of this Ordinance, then this Ordinance shall become a valid and binding Ordinance of the City of Arcata, and shall be considered as adopted upon the date that the vote is declared by the City Council, and this Ordinance shall go into effect ten (10) days after that date, pursuant to Election Code section 9217.

**CLERK'S CERTIFICATE**

I hereby certify that the foregoing is a true and correct copy of Ordinance No. 1589, passed and adopted at a special meeting of the City Council of the City of Arcata, County of Humboldt, State of California on the __ Day of December, 2026.

_____

City Clerk, City of Arcata

**CITY OF ARCATA**
**CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE "G"**
**EXTENDING THE THREE-FOURTHS OF ONE CENT (3/4¢) TRANSACTIONS AND USE TAX ("SALES TAX")**

On June 17, 2026, the City Council of the City of Arcata ("City"), acting on its own motion, not by voter petition, voted to place Measure G on the ballot for the November 3, 2026, general municipal election. If approved by a majority of City voters (50% + 1), this measure would extend the existing three-fourths of one cent (3/4¢) transactions and use tax within the City until rescinded by voters.

On November 4, 2008, City voters approved a three-fourths of one cent (3/4¢) transactions and use tax for a twenty (20) year term. Transactions and use taxes, also known as "sales taxes", are taxes imposed on the sale of tangible personal property at retail, which local agencies are authorized to impose and extend under Revenue and Taxation Code section 7285.9. The three-fourths of one cent (3/4¢) transactions and use tax expires on March 31, 2029. Under the California Constitution, local governments may vote to extend a sales tax, subject to approval by the voters at an election. This measure would extend the three-fourths of one cent (3/4¢) transactions and use tax within the City upon expiration of the existing three-fourths of one cent (3/4¢) transactions and use tax on March 31, 2029, until rescinded by voters.

The City's current sales tax rate is 10.250%. If the measure passes, the sales tax rate would remain 10.250% The tax would continue to be collected in the same manner as existing sales taxes. It is estimated that extending the three-fourths of one cent (3/4¢) transactions and use tax will provide 2.8 million dollars ($2,800,000) in annual local funding. The transactions and use tax revenue would remain in the City and would not be shared with the State or County.

This sales tax is a "general tax", meaning that revenues raised from the tax go into the City's general fund to pay for any lawful City program, service, or improvement. According to the City Council, the measure is proposed to continue existing general government funding to maintain essential services including public safety staffing; filling potholes; maintaining and repairing City streets, sidewalks, multi-use trails, and bicycle paths; and expanding multi-modal circulation.

The measure would require the existing Transactions and Use Tax Oversight Committee to conduct an annual review of all expenditure of revenues generated by the sales tax.

A "yes" vote on Measure G will authorize extending the three-fourths of one cent (3/4¢) sales tax until rescinded by voters.

A "no" vote on Measure G will not authorize extending the three-fourths of one cent (3/4¢) sales tax until rescinded by voters.

The above statement is an impartial analysis of Measure G. If you desire a copy of the measure, please contact the City Clerk's Office at 707-822-5953 or RVarley@CityofArcata.org and a copy will be mailed at no cost to you.

/s/
Nubia Goldstein
City Attorney

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AUG 11 2026

CITY OF ARCATA
CITY MANAGER'S OFFICE

*Arguments in support or opposition of the proposed laws are the opinions of the authors.*

**ARGUMENT IN FAVOR OF MEASURE G**

**Vote YES on Measure G to continue investing in Arcata's future.**

Measure G renews Arcata's existing ¾ cent local sales tax that has funded essential City services since first approved by the voters in 2008, as Measure G. This current measure extends that funding source to continue to support public safety through maintenance and improvements to streets, multi-use trails, sidewalks, bike lanes, environmental stewardship, emergency response and public safety staffing levels established in 2008.

Without the $39 million generated by Measure G, projects such as the Annie & Mary Trail; Humboldt Bay Trail; Old Arcata Road Rehabilitation; Sunset Blvd and LK Wood project; South Arcata Multimodal Improvement Project (SAMSIP); traffic calming measures; annual paving, slurry, and sidewalk improvements, including American with Disabilities Act (ADA) ramps and accommodations - would not have happened. Measure G funds allowed Arcata to leverage the dollars spent on local transportation projects for an additional $35 million in grants.

Without renewal, Arcata would lose an important source of local revenue that helps maintain public safety and quality of life that residents, businesses, students, and visitors expect.

Every dollar generated by Measure G stays in Arcata and cannot be taken by Sacramento or the federal government. Independent financial audits and public oversight help ensure that revenues are used responsibly and transparently.

Measure G is a continuation of a locally controlled funding source—not a new tax. Measure G ensures visitors, tourists, students, and governmental agencies (including Cal Poly) all share the costs of supporting the transportation options and public safety we value. Measure G is not charged for your groceries, prescription medications, services, or rent, limiting the impact on residents.

Please join community members in supporting continued investment in Arcata.

**Vote YES on Measure G.**

Colin Fiske
Executive Director of Coalition for Responsible Transportation Priorities (CRTP), Member of Transactions Tax Oversight Committee, 7-year resident of Arcata

Wendy Starr
Population Health Professional,
City of Arcata Planning Commission,
7-year resident of Arcata

Jeff Nagan
Downtown Arcata Property and Business Owner, 27-year resident of Arcata

Charles Powell
Equity Arcata Volunteer, 29-year resident of Arcata

Stephanie Lane
Executive Director of Cal Poly Humboldt Alumni Relations, and Recreation Committee Member, Arcata Resident

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CITY OF ARCATA
CITY MANAGER'S OFFICE

# BALLOT ARGUMENT STATEMENT FORM

Elections Code Section 9600

All arguments concerning measures filed pursuant to California Elections Code Division 9, commencing with Section 9000, shall be accompanied by the following form statement, to be signed by each proponent and by each author, if different, of the argument:

The undersigned proponent(s) or author(s) of the Primary (primary/rebuttal to)

argument in favor of (in favor of/against) ballot proposition Arcata Sales Tax Measure G1 (name or number)

at the General Municipal Election (title of election)

for the City of Arcata (jurisdiction)

to be held on November 3, 2026 (date of election) hereby state that such

argument is true and correct to the best of his/her/their (his/her/their) knowledge and belief.

Signed _____ Date 8/10/26

Printed name Wendy Starr Title Population Health Professional

Signed _____ Date 8/10/26

Printed name Jeff Nagan Title Downtown Property & Business Owner

Signed _____ Date 8/11/26 8/11/26

Printed name Charles Powell CP Title Resident & volunteer CP

Signed _____ Date 8/11/26

Printed name Stephanie Lane Title Ex. Dir. Alumni Relations

Signed _____ Date 8/11/26

Printed name Colin Fiske Title Member of Transactions + Use Tax Oversight Committee

**AUTHOR INFORMATION**

Signed _____ Date _____

Printed name _____ Title _____

Mailing Address _____